PROPERTY CONDITION DISCLOSURE AND ACKNOWLEDGMENT OF RISK

Power Clean · State of Florida

THIS PROPERTY CONDITION DISCLOSURE AND ACKNOWLEDGMENT OF RISK (this "**Acknowledgment**") is made and entered into as of _____ by and between _____, doing business as Power Clean ("**Contractor**"), and _____ ("**Customer**"). The Acknowledgment concerns the real property located at _____, Florida (the "**Property**"), and the services described in Estimate No. _____ (the "**Services**").

RECITALS

WHEREAS, the Parties have entered into, or are contemporaneously entering into, a Pressure and Soft Washing Services Agreement (the "**Service Agreement**") for the performance of the Services at the Property; and

WHEREAS, the Parties desire to record the condition of the Property prior to the performance of the Services, the ordinary risks inherent in exterior cleaning, and Customer's preparatory obligations.

NOW, THEREFORE, the Parties acknowledge and agree as follows:

1. PURPOSE AND INCORPORATION

1.1 This Acknowledgment supplements, and is incorporated into, the Service Agreement. Capitalized terms used but not defined herein have the meanings given to them in the Service Agreement. In the event of any conflict between this Acknowledgment and the Service Agreement, the Service Agreement shall control.

2. DISCLOSURE OF KNOWN CONDITIONS

2.1 Duty to Disclose. Customer shall disclose to Contractor, prior to the commencement of the Services and to the best of Customer's knowledge, all known or suspected pre-existing conditions of the Property. Such conditions include loose or deteriorated:

(a) siding, roofing, masonry, pavers, grout, and caulking;

(b) window seals and screens;

(c) paint, stain, sealer, and wood;

(d) electrical fixtures and outlets; and

(e) irrigation equipment, drainage, and any other vulnerable materials.

Customer shall likewise disclose any manufacturer warranty or homeowners' or condominium association restriction known to Customer that limits the methods by which any surface may be

cleaned.

2.2 Record of Conditions. The Parties shall jointly inspect the areas to be cleaned before the commencement of the Services and shall record observed conditions below. The Parties agree that this record, together with any photographs referenced herein, constitutes evidence of the condition of the Property prior to the Services.

Area / Surface	Condition Observed	Photographed
		☐ Yes
		☐ Yes
		☐ Yes
		☐ Yes
		☐ Yes
		☐ Yes

☐ No pre-existing conditions are known to Customer or were observed by Contractor.

☐ Additional pages or photographs are attached hereto: _____ page(s); _____ photograph(s).

3. ACKNOWLEDGMENT OF ORDINARY RISKS

3.1 Customer acknowledges and understands that:

(a) water, pressure, runoff, and cleaning agents may affect sensitive or deteriorated materials and vegetation; and

(b) the Services may expose defects that existed before the Services but were previously concealed.

3.2 Contractor shall exercise reasonable care and employ methods appropriate to the surfaces described in the Estimate.

4. CUSTOMER'S PREPARATORY OBLIGATIONS

4.1 Prior to the commencement of the Services, Customer shall:

(a) close and secure all openings adjacent to the areas to be cleaned;

(b) remove or protect fragile personal property;

(c) provide access to the areas to be cleaned;

(d) keep all persons and animals clear of the work area; and

(e) identify to Contractor all delicate vegetation, finishes, ponds, and pools.

5. NO RELEASE OF NEGLIGENCE

5.1 This Acknowledgment is not a release. Customer's acknowledgment of the ordinary risks and pre-existing conditions described herein shall not be construed to release, waive, or limit Contractor's liability for its own negligence, recklessness, or willful misconduct, or for any liability that may not lawfully be released, waived, or limited.

5.2 Contractor shall not be liable for any pre-existing condition recorded pursuant to Section 2 solely by reason of its exposure in the course of the Services.

5.3 Responsibility for any loss shall be determined in accordance with the Service Agreement and the laws of the State of Florida.

6. REPORTING OF CONCERNS

6.1 Customer shall promptly report any suspected damage arising from the Services, preferably within seven (7) days after their completion, together with relevant details and photographs, so that the concern may be evaluated. This Section shall not shorten any limitations period prescribed by law and shall not operate as a waiver of any right.

7. CUSTOMER ACKNOWLEDGMENT

7.1 By executing this Acknowledgment, Customer represents that Customer:

(a) has read this Acknowledgment in its entirety;

(b) has had an opportunity to ask questions concerning it;

(c) has received a copy of it; and

(d) has disclosed all known vulnerable areas of the Property to the best of Customer's knowledge.

7.2 This Acknowledgment may be executed by electronic signature pursuant to Section 668.50, Florida Statutes.

IN WITNESS WHEREOF, the Parties have executed this Acknowledgment as of the date first written above.

CUSTOMER	**CONTRACTOR**
	_____, d/b/a Power Clean
_____	_____
Signature	By (Signature)
_____	_____
Printed Name	Printed Name and Title
_____	_____
Date	Date